

Nursing Staff Supervision

Ensuring Qualified Staff Oversight and Competency

Regulation: 42 CFR §482.23

POLICY OVERVIEW

Adequate nursing supervision is essential to ensuring safe, high-quality patient care. Nursing service policies must address staffing levels, competency validation, supervision of unlicensed staff, and accountability structures throughout the organization.

KEY REQUIREMENTS

1 Registered Nurse Requirement

A Registered Nurse (RN) must supervise and evaluate the nursing care for each patient. An RN must be on duty 24 hours a day, 7 days a week. Licensed Practical Nurses (LPNs) and nursing assistants must work under RN supervision.

2 Scope of Practice Compliance

Nursing staff must practice within their state-defined scope of practice. Supervisors are responsible for ensuring delegated tasks are appropriate and performed by qualified individuals. Scope of practice violations must be addressed immediately.

3 Competency Validation

All nursing staff must demonstrate competency for their assigned responsibilities before practicing independently. Annual competency validation is required. Competency records must be maintained and accessible.

4 Supervision of Agency/Contract Staff

Agency and travel nurses must be oriented to hospital policies and patient population before patient care assignment. They must be supervised by permanent staff and cannot hold charge nurse positions without hospital administrator approval.

5 Float Pool Management

Nurses floated to other units must be assessed for competency on that unit before assignment. Float nurses should not be assigned patients requiring specialty skills they have not demonstrated competency in.

COMPLIANCE NOTES

The Director of Nursing/Chief Nursing Officer is responsible for organizing, managing, and evaluating nursing services. Staffing plans must be based on patient acuity, census, and outcomes data. Mandatory overtime policies should be reviewed carefully.

COMMON SURVEY CITATIONS

Cited under §482.23(a) – Nursing service organization, §482.23(b) – Staffing requirements, and §482.23(c) – Nursing care.